Constitutional Convention

Background Guide and Delegate Position Sheets | Standard Committee | Philadelphia, June 1787

Introduction

In the summer of 1787, delegates from twelve of the thirteen states gathered in the Pennsylvania State House in Philadelphia. Congress had authorized the meeting only to revise the Articles of Confederation, the weak framework that had governed the country since 1781. Many delegates arrived believing that revision would not be enough. Your task in this committee is to decide what kind of national government the United States should have, and how much power the states should keep.

The committee has twenty delegates. Each one represents a real participant with a distinct background, region and set of fears. No delegate can pass anything alone, and no two delegates want exactly the same thing. Success depends on building coalitions, giving ground on some questions and holding firm on others.

The committee is set in June 1787. Delegates know about events up to that month and nothing after it. Do not cite later history, including the ratification debates or the Federalist Papers, as if you had already lived through it.

Historical Background

Why the Articles of Confederation failed

The Articles created a "league of friendship" among sovereign states. Congress had one chamber, and each state cast one vote. It had no independent executive and no national courts. Congress could ask the states for money but could not tax, and it could not regulate trade between states or with other countries. Major decisions needed the votes of nine states, and amending the Articles required the consent of all thirteen.

The results were visible by the mid-1780s. Congress could not pay its war debts or fund an army. States taxed each other's goods, printed their own paper money and pursued separate foreign trade policies. Britain kept troops in forts in the Northwest, and Spain had closed the lower Mississippi River to American shipping. Congress could protest but could not compel anyone to act.

Road to Philadelphia

- 1781: The Articles of Confederation take effect after ratification by all thirteen states.
- 1783: The Treaty of Paris ends the Revolutionary War. The war debts remain unpaid.
- 1786: Farmers in western Massachusetts, led by Daniel Shays, shut down courts to protest debt collection and heavy taxes. Congress has no money or army to respond, and Massachusetts raises a militia with private funds.
- September 1786: Delegates from five states meet at Annapolis, Maryland, to discuss trade. They call for a broader meeting to fix the national government.
- February 1787: Congress endorses a convention in Philadelphia "for the sole and express purpose of revising the Articles of Confederation."
- May 25, 1787: The Convention reaches a quorum. George Washington is chosen to preside, and

delegates agree to keep the debates secret.
- May 29, 1787: Edmund Randolph presents the Virginia Plan, which proposes an entirely new national government rather than repairs to the old one.

Rhode Island refused to send delegates because it opposed any strengthening of the national government. New Hampshire named delegates, but they had not arrived by June. About fifty-five delegates attended at some point during the Convention. Many were lawyers, planters or merchants, several had signed the Declaration of Independence, and several had served in the army or in Congress.

Committee Agenda

The committee's goal is to write a constitution. The four agenda items below overlap, and most of the hardest decisions sit where two of them meet.

Agenda Item	What It Asks	Questions to Consider
Freedoms	Which liberties should the constitution protect?	Should speech, religion, the press and jury trial be listed in the text? Should they protect people from the national government, the states, or both? Who enforces them?
Rights of the People	What rights should the people hold, and who counts as "the people"?	Who may vote and hold office? Should the people elect officials directly? How should enslaved people be counted for representation and taxes?
Federal Authority	How much power should the national government have?	Should it tax, regulate trade and raise an army? Should there be a single executive, and how strong? What role should national courts play?
Federalization	How much autonomy should the states keep?	Should each state have an equal vote, or should votes follow the population? Can the national government overrule state laws? Who must approve the new constitution?

Key Debates

Representation

Under the Articles, Delaware and Virginia had the same single vote. The Virginia Plan would give seats in the legislature by population or by contribution to the national treasury, which would hand large states like Virginia, Pennsylvania and Massachusetts control of Congress. Small states such as New Jersey,

Delaware and Maryland fear being outvoted permanently. Any compromise must persuade both sides that their interests are safe.

Slavery and the counting of population

Roughly one in six people in the United States was enslaved, and most lived in the South. If representation follows the population, delegates must decide whether enslaved people count, and if so how. Southern delegates want them counted for representation, while Northern delegates note that enslaved people have no vote and question why slaveholding states should gain seats from them. A related question is whether the national government may regulate or end the importation of enslaved people. Several Southern delegations regard protection of slavery as a condition of joining any new union, while other delegates, including some slaveholders, find the institution morally troubling.

The executive

The delegates distrust monarchy after the Revolution, yet many believe Congress cannot govern without a capable executive. Should the executive be one person or several? How long should the term be, and should the executive be eligible for reelection? Should the executive be chosen by Congress, by state legislatures or by the people? Should the executive hold a veto over legislation?

Powers of the national government and the states

The delegates must decide which powers belong to the nation: taxes, trade, defense, coinage, disputes between states. Some want the national government to be able to overrule state laws, while others insist that states remain sovereign in their own affairs. State governments also differ, since some already have written declarations of rights, and others have none.

Individual liberty

Several state constitutions, including those of Virginia and Massachusetts, list rights that the government may not violate. Some delegates want the same protections written into the national constitution. Others argue that a list is unnecessary because the national government will only hold the powers granted to it, and that a list could imply that unlisted rights are not protected. Standing armies, trial by jury and freedom of religion are the areas where this debate is likely to be sharpest.

Ratification

The Articles can be amended only with the consent of all thirteen states, and Rhode Island has already refused to attend. Delegates must decide who approves a new constitution and how many states must agree for it to take effect. Approval by state legislatures, which may protect their own power, is a different standard from approval by conventions elected by the people.

How to Prepare

1. Read your delegate's position sheet and note the goals and red lines. Your red lines are the points you will not concede without something significant in return.
2. Research your delegate's life, especially their state, profession and earlier public statements.

Delegates who understand their character argue more convincingly.

3. Identify the delegates whose interests overlap with yours, and the ones who will oppose you. The sheets suggest starting points, but real coalitions form on specific issues and change from one question to the next.
4. Bring at least one concrete proposal to the committee. Each sheet includes an opening proposal you can use, adapt or replace.
5. Stay in period. Use the language of 1787 where you can, and argue from the experience of the Revolution, the Articles and your state.

Delegates at a Glance

Delegate	State	Main Concern
James Madison	Virginia	Representation by population and checks on factions
Alexander Hamilton	New York	Concentrated national power and a long-serving executive
Benjamin Franklin	Pennsylvania	Compromise and broad voting rights
Roger Sherman	Connecticut	A split legislature balancing population and state equality
William Paterson	New Jersey	Equal state votes and amending the Articles
Gouverneur Morris	Pennsylvania	A president elected nationally, and opposition to slavery
James Wilson	Pennsylvania	Government that rests directly on the people
Edmund Randolph	Virginia	National supremacy without a single executive
George Mason	Virginia	Guaranteed individual rights and limits on armies
Elbridge Gerry	Massachusetts	Fear of standing armies and of excessive democracy
Charles Pinckney	South Carolina	A national government that protects slavery
John Rutledge	South Carolina	Representation weighted by wealth
Luther Martin	Maryland	State sovereignty and equal

Delegate	State	Main Concern
		votes
John Dickinson	Delaware	Balancing national and state authority
Rufus King	Massachusetts	National trade power and limits on slavery
Gunning Bedford Jr.	Delaware	Small-state equality

Delegate Position Sheets

James Madison

Virginia
Background: At thirty-six, a scholar of ancient and modern republics who spent the winter preparing for the Convention. He helped write the Virginia Plan, and he takes detailed notes of every debate.
Goals: A two-house national legislature with seats apportioned by population in both houses. A national power to overrule state laws that conflict with the constitution. Separate executive, legislative and judicial branches. A large republic in which no single faction can dominate.
Red lines: Equal votes for each state in the national legislature. A national government that depends on the states to carry out its laws. Any arrangement that leaves state laws on debt and paper money beyond national review.
Opening proposal: Give a national body the authority to strike down state laws that violate the national constitution.
Allies and rivals: Likely allies are Washington, James Wilson and Rufus King. Likely rivals are William Paterson, Luther Martin and Gunning Bedford Jr.

Alexander Hamilton

New York
Background: A lawyer and former aide to Washington, born in the West Indies. He is the most nationalist member of the New York delegation and is regularly outvoted by his two colleagues, who favor state power.
Goals: A national government with broad authority over taxes, trade and the military. An executive who serves for life or during good behavior and who is independent of Congress. State governments reduced to a secondary role.
Red lines: Any plan that resembles the Articles of Confederation. Equal votes for the states. A weak executive.
Opening proposal: Let the national government appoint the governors of the states, with the power to veto state laws.
Allies and rivals: Likely allies are Washington, Gouverneur Morris and Rufus King. Likely rivals are Luther Martin and William Paterson.

Benjamin Franklin

Pennsylvania
Background: At eighty-one, the oldest delegate. A printer, scientist and diplomat who helped secure the French alliance during the Revolution and who now serves as president of Pennsylvania. He is widely respected, and his good humor often calms tempers.
Goals: Preserve unity and steer the committee toward compromise. A single-chamber legislature like Pennsylvania's. An executive who receives no salary. Broad voting rights that do not depend on owning property.
Red lines: Talks that collapse with no agreement. Property requirements for voting. A national government that ignores the consent of the governed.
Opening proposal: Establish that the executive will serve without salary, and that voting will not be limited by property ownership.
Allies and rivals: Likely allies are Roger Sherman and James Wilson. Likely rivals are Alexander Hamilton and Gouverneur Morris.

Roger Sherman

Connecticut
Background: A self-taught lawyer and former judge who signed both the Declaration of Independence and the Articles of Confederation. Blunt and practical, he is skeptical of sweeping change and focuses on what will get accepted.
Goals: A legislature in which one house is based on population and the other gives each state an equal vote. Modest new national powers over taxes and trade. An executive who answers to the legislature.
Red lines: Representation by population in both houses. An executive who can act independently of the legislature. Any plan that erases the state governments.
Opening proposal: Divide the legislature so that the lower house represents the population and the upper house gives each state one equal vote.
Allies and rivals: Likely allies are Franklin and John Dickinson. Likely rivals are James Wilson and Madison.

William Paterson

New Jersey
Background: Attorney general of New Jersey and the leading voice of the small states. He is careful and precise, and he believes the Convention has no legal authority to abandon the Articles.
Goals: Amend the Articles rather than replace them. Give Congress the power to raise revenue through import duties and to regulate trade. Keep one vote for each state. Elect a plural executive by Congress. Give national courts final say in federal matters.
Red lines: Representation by population, which would let the large states control Congress. Discarding the Articles of Confederation entirely.
Opening proposal: Give Congress authority to collect import duties and regulate trade while keeping one vote per state.
Allies and rivals: Likely allies are Gunning Bedford Jr., Luther Martin and John Dickinson. Likely rivals are Madison, James Wilson and Edmund Randolph.

Gouverneur Morris

Pennsylvania
Background: A brilliant and outspoken lawyer, born in New York and now a Pennsylvania delegate, who

lost a leg in a carriage accident. He speaks more often than almost anyone else and does not soften his opinions.
Goals: A powerful national government that speaks for the whole country rather than for any one region. A single executive elected by the people at large, with a veto. Political influence for owners of property. An end to any advantage given to slaveholding states.
Red lines: Election of the president by the legislature. State governments that can block national policy. Counting enslaved people for representation.
Opening proposal: Have the president elected by the whole nation and hold a veto over legislation.
Allies and rivals: Likely allies are Hamilton, Washington and Rufus King. Likely rivals are John Rutledge, Charles Pinckney and Benjamin Franklin.

James Wilson

Pennsylvania
Background: A Scottish-born lawyer and signer of the Declaration of Independence. He is the delegate most committed to popular sovereignty, the idea that all government authority comes directly from the people.
Goals: Direct popular election of the lower house. A single executive chosen by the people or by electors. A national government that acts directly on citizens and does not depend on the states. Representation by population in both houses.
Red lines: Equal votes for the states. A plural executive. Selection of national officials by state legislatures.
Opening proposal: Have the lower house elected directly by voters, and create a single executive.
Allies and rivals: Likely allies are Madison and Gouverneur Morris. Likely rivals are Roger Sherman, William Paterson and Luther Martin.

Edmund Randolph

Virginia
Background: Governor of Virginia, who presented the Virginia Plan on the Convention floor. He supports a strong national government, but he is wary of concentrating too much power in one person.
Goals: National authority over taxes, trade and defense through a two-house legislature. An executive of three people drawn from different regions. Ratification of the new constitution by conventions chosen by the people.
Red lines: A single powerful executive who resembles a king. A constitution that gives each state a veto over national action.
Opening proposal: Replace a single executive with a three-person executive drawn from different regions.
Allies and rivals: Likely allies are Madison and George Mason. Likely rivals are Alexander Hamilton and James Wilson.

George Mason

Virginia
Background: A wealthy planter and neighbor of Washington, who wrote Virginia's Declaration of Rights in 1776. He owns enslaved people yet calls slavery a moral evil and the slave trade a disgrace.
Goals: Written protection of individual rights in the national constitution. Limits on standing armies in peacetime. Division of power among branches so no single body can dominate. An end to the importation

of enslaved people.
Red lines: A constitution with no guarantee of individual rights. An army under unchecked national control. An executive who accumulates power.
Opening proposal: Include a declaration of rights protecting jury trial, freedom of the press and freedom of religion, and restrict standing armies in peacetime.
Allies and rivals: Likely allies are Elbridge Gerry and Edmund Randolph. Likely rivals are Alexander Hamilton, and John Rutledge.

Elbridge Gerry

Massachusetts
Background: A merchant from Marblehead and a signer of the Declaration of Independence. The uprising in his own state convinced him that ordinary people can be dangerous, but he is just as afraid of a distant government with a standing army.
Goals: Have the lower house chosen by state legislatures rather than by voters. Restrict peacetime armies to a fixed small size. Give the national government defined and limited powers.
Red lines: A large peacetime army. A national government with unlimited powers. Direct election of national officials by the general public.
Opening proposal: Limit the size of the peacetime army, and have state legislatures choose the members of the lower house.
Allies and rivals: Likely allies are George Mason and Roger Sherman. Likely rivals are James Wilson and Alexander Hamilton.

Charles Pinckney

South Carolina
Background: One of the youngest delegates, ambitious and eager to shape the outcome. He presented his own written plan for a new government. Not to be confused with his older cousin Charles Cotesworth Pinckney, who also serves in the Convention.
Goals: A strong national government, with the condition that it does not interfere with slavery. Full counting of enslaved people in the population for representation. A high property requirement for the president and judges.
Red lines: Any national power to limit or end slavery. A representation formula that reduces South Carolina's weight.
Opening proposal: Count enslaved people in the population when assigning seats, and preserve the states' authority over slavery.
Allies and rivals: Likely allies are John Rutledge. Likely rivals are Rufus King and Gouverneur Morris.

John Rutledge

South Carolina
Background: A prominent lawyer and former governor of South Carolina who owns a large plantation. He is confident and forceful in debate and speaks for the interests of the Southern planter class.
Goals: Protect the Southern economy, which depends on enslaved labor. Have representation reflect wealth as well as population. Allow the states to continue importing enslaved people.
Red lines: Any national power to end the slave trade or tax exports. A legislature that a Northern majority could use to pass trade laws that hurt Southern exports.
Opening proposal: Base representation on wealth as well as population, so that property is counted

alongside people.
Allies and rivals: Likely allies are Charles Pinckney. Likely rivals are George Mason and Gouverneur Morris.

Luther Martin

Maryland
Background: Attorney general of Maryland and one of the most vigorous speakers in the room. He believes the Convention has exceeded its instructions and that the states are the true foundation of the union.
Goals: Keep one equal vote for each state. Preserve state sovereignty. Revise the Articles instead of replacing them.
Red lines: Representation by population. A national government that reaches directly into the states. A national veto over state laws.
Opening proposal: Keep one vote per state, and require state approval before national laws take effect within its borders.
Allies and rivals: Likely allies are William Paterson, Gunning Bedford Jr. Likely rivals are Madison, James Wilson and Alexander Hamilton.

John Dickinson

Delaware
Background: Author of Letters from a Farmer in Pennsylvania and writer of the first draft of the Articles of Confederation. He has served as president of both Delaware and Pennsylvania. He wants a stronger national government but not at the expense of small states.
Goals: A national government strong enough to function, alongside states that keep a real role. Equal representation for each state in the upper house. Selection of senators by state legislatures.
Red lines: Abolition of the state governments. Any arrangement that lets large states dominate. His Delaware colleagues have credentials that forbid them from giving up the state's equal vote.
Opening proposal: Have state legislatures choose the members of the upper house, so that the states retain a direct voice.
Allies and rivals: Likely allies are Roger Sherman and William Paterson. Likely rivals are James Wilson and Alexander Hamilton.

Rufus King

Massachusetts
Background: A thirty-two-year-old lawyer from Newburyport and former member of the Confederation Congress. In 1785 he proposed banning slavery in the western territories. He wants a strong national government but is troubled by the growing power of slaveholding states.
Goals: Representation by population. National authority over foreign and interstate trade, which matters greatly to New England's shipping. Limits on the political power that slavery gives to the South.
Red lines: Equal state votes. Full counting of enslaved people for representation. State laws that weaken the obligation of contracts.
Opening proposal: Give the national legislature power over foreign and interstate trade, and bar states from taxing goods from other states.
Allies and rivals: Likely allies are Madison, Hamilton and Gouverneur Morris. Likely rivals are John

Rutledge, Charles Pinckney and Luther Martin.

Gunning Bedford Jr.

Delaware
Background: A lawyer and classmate of Madison at Princeton. He is the most combative defender of the small states and is willing to say openly what others only hint at, that small states might look elsewhere for protection if they are shut out.
Goals: Guarantee equal representation for every state. Strengthen the national government only in ways that do not reduce the influence of small states.
Red lines: Any reduction of the influence of small states. A national government with power to override state laws.
Opening proposal: Refuse representation by population unless small states hold an equal vote in at least one house.
Allies and rivals: Likely allies are William Paterson, Luther Martin and John Dickinson. Likely rivals are Madison, James Wilson, Rufus King and Edmund Randolph.

Further Reading

- The Articles of Confederation (text), available through the National Archives and the Library of Congress.
- The Virginia Plan and the New Jersey Plan, as recorded in Madison's notes.
- James Madison, Notes of Debates in the Federal Convention of 1787.
- Max Farrand, The Records of the Federal Convention of 1787.
- Your delegate's own writings, letters and speeches where they survive.
- Real life constitution